

CHAPTER TEN

MAKING AN OFFER

Once you have found a house that meets your needs and you're ready to pull the trigger, it's time to make an offer. Of course, this isn't as easy as calling up the seller and saying, "Hey, just wanted to let you know that we like the house! Can we have it, pretty please?" There will be paperwork, and that paperwork is referred to as...The Contract.

Okay, we're being dramatic. It's not usually capitalized. But this contract is a big deal—it will dictate all the terms of the transaction, on both the buyer's and the seller's side. If you feel strongly about anything, it should be put into the contract. Leaving anything up for interpretation can cause confusion.

If at any point we say, "Put it in the contract," we really mean, "Tell your agent to put it in the contract as they fill it out." Contracts are confusing, and agents know what the various items are and who traditionally pays for what in your area. Usually, the buyer will pay for certain closing costs like lender fees, while the seller typically pays for agent commissions, property transfer tax, recording fees, and so on. Your agent will know all these ins and outs, and they should be able to handle any of your requirements.

Writing the offer can take your agent a couple of hours, so you should be available via phone or text to answer any questions they might have. (As an example, our own state of Colorado's Contract to Buy & Sell is twenty pages long.) When your agent is finally done with their twenty-page-long mental workout, they will then send it to you for approval before it goes off to the seller. The agent most likely uses electronic signature software to fill out the contract, which is editable until someone signs it. It's not so easy to make changes once there's a signature, so make sure you're taking more time to read through it and accept the terms than you did for that app you just downloaded.